

Smt Deepa W/O Shivayogi Paramashetti vs Sri Shivayogi S/O Ishwarappa ... on 5 October, 2023

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NC: 2023:KHC-D:11838
CP No. 100208 of 2022

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 5TH DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100208 OF 2022

BETWEEN:

SMT. DEEPA W/O SHIVAYOGI PARAMASHETTI
AGED ABOUT: 32 YEARS, OCC.NIL, HOUSE WORK
R/AT. C/O. SHIVAMURTHY MAHABALASHETTI
NEAR DCC BANK, NEAR PETROL BUND,
POST. KUDACHI, TQ. RAIBAG,
DIST. BELAGAVI-591311.

...PETITIONER

(BY SRI. MAHANTESH MATHAD, ADVOCATE)

AND:

SRI. SHIVAYOGI S/O ISHWARAPPA PARAMASHETTI
AGED ABOUT 37 YEARS, OCC. PRIVATE JOB,
R/AT. HARIMANDIR LANE

POST: RABAKAVI TQ: RABAKAVI-BANAHATTI

DIST. BAGALKOT-587311.

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signed by
SHIVAKUMAR
SHIVAKUMAR HIREMATH
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...RESPONDENT

(BY SRI. VIJAYAKUMAR B HORATTI, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO TRANSFER THE MATRIMONIAL CASE NO. 41 OF 2022
ON THE FILE OF THE SENIOR CIVIL JUDGE AND JUDICIAL
MAGISTRATE FIRST CLASS BANAHATTI DIST BAGALKOT TO SENIOR
CIVIL JUDGE AND JUDICIAL MAGISTRATE FIRST CLASS RAIBAG DIST

BELAGAVI IN THE INTEREST OF JUSTICE AND EQUITY.

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THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS
DAY, THE COURT MADE THE FOLLOWING:
ORDER

The present petition is filed by the wife under Section 24 of the Code of Civil Procedure, 1908 (hereinafter referred to as 'CPC') seeking for transfer of M.C.No.41/2022 pending on the file of the Senior Civil Judge and JMFC, Banahatti to the Senior Civil Judge and JMFC, Raibag.

2. The necessary facts relevant for consideration of the present petition are that the marriage between the parties was solemnized on 16.11.2016 and the parties resided together for about 11 months. Thereafter, due to various reasons, the parties have been living separately. The petitioner/wife is currently staying along with her parents at the address mentioned in the cause title.

3. The respondent/husband has instituted M.C.No.41/2022 under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955, on the file of the Senior Civil NC: 2023:KHC-D:11838 Judge and JMFC, Banahatti. Seeking transfer of the same, the present petition is filed.

4. Learned counsel for the petitioner contends that the distance between the place of the residence of the petitioner and Banahatti is about 64 km and that the petitioner has no independent source of income and she is dependent on her parents for her livelihood. It is further submitted that the respondent/husband is gainfully employed. Hence, he seeks for allowing of the present petition and granting of the relief sought for.

5. Per contra, learned counsel for the respondent opposes the grant of relief as sought for in the petition and submits that the distance between the place of residence of the petitioner and Banahatti is only about 50 km and that despite all efforts made by the husband, the wife is not agreeable to any amicably resolution of the disputes. He further submits that the present petition is filed only to harass the respondent/husband.

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6. I have considered the contentions put forth by the both learned counsel and perused the material available on record.

7. The relationship of the parties and pendency of the legal proceedings are undisputed. The wife is admittedly living along with her parents and she has no independent source of income. It is not disputed that the husband is gainfully employed and has an independent source of income.

8. It is clear from the aforementioned that the wife will be put to great hardship if she is required to travel to Banahatti for the purpose of contesting the proceedings initiated by the husband. Although the husband will also be put to some hardship, if he is required to travel to Raibag for the purpose of prosecuting the proceedings initiated by him, having regard to the settled position of law that for considering the cases for transfer of matrimonial proceedings, the convenience of the wife will have to be given precedence to as has been held by the Hon'ble Supreme Court in the case of N.C.V. NC: 2023:KHC-D:11838 Aishwarya vs A.S.Saravana Karthik Sha1, it is expedient that relief sought for in the present petition be granted.

9. In view of the aforementioned, the following is passed:

ORDER

- i) The petition is allowed;
- ii) M.C.No.41/2022 pending on the file of the Senior Civil Judge and JMFC, Banahatti shall stand transferred to the Court of the Senior Civil Judge and JMFC, Raibag;
- iii) Both the parties shall appear before the transferee Court on 26.10.2023 without the requirement of any further notice being issued in this regard;
- iv) The transferee Court, upon transfer, shall proceed further in accordance with law;
- v) All contentions of both the parties are left open.

(Sd/-) JUDGE 2022 LiveLaw (SC) 627